

# Eviction and Legal Action Policy

Document Reference: DC-POL-010

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| Approved By:    | Legal and Compliance Manager / CEO  |
| Department:     | Legal Services / Housing Operations |

## 1. Purpose and Scope

DataCompany Housing Management recognises that the loss of a home is a serious matter and will always seek to avoid eviction wherever possible through early intervention, support and the application of proportionate remedies. This policy sets out the legal and procedural framework DataCompany follows when tenancy breaches are serious or persistent enough to require formal legal action, including the application for a court order for possession. It applies to all DataCompany tenancies.

All eviction actions are carried out strictly in accordance with Zimbabwe tenancy and property law. DataCompany does not engage in unlawful eviction or harassment of tenants under any circumstances.

## 2. Grounds for Eviction

DataCompany may commence eviction proceedings on one or more of the following grounds. Evidence must be documented before any action is initiated.

| Ground                      | Description                                                          | Process Type                           |
|-----------------------------|----------------------------------------------------------------------|----------------------------------------|
| Rent Arrears                | Rent unpaid for 8 weeks or more, or persistent short-payment         | Standard (notice required)             |
| Breach of Tenancy Terms     | Persistent or serious breach of tenancy obligations                  | Standard (notice required)             |
| Anti-Social Behaviour       | Serious or persistent ASB causing risk or nuisance                   | Expedited (shorter notice)             |
| Illegal Activity            | Use of property for criminal purposes, drug dealing or manufacturing | Expedited; referral to ZRP             |
| Abandonment                 | Property left vacant with no contact for 28+ days                    | Investigation first; then legal notice |
| Unauthorised Subletting     | Commercial subletting without consent                                | Standard (notice required)             |
| End of Tenancy (No-Fault)   | Landlord requires property for major works or sale                   | Minimum 2 months notice required       |
| Significant Property Damage | Deliberate or negligent destruction of property                      | Expedited                              |

### 3. The Eviction Process: Standard Grounds

For standard grounds, DataCompany follows a stepped legal process designed to give the tenant every reasonable opportunity to remedy the breach before formal legal proceedings are commenced:

| Step | Action                                                                                                  | Timeframe                               |
|------|---------------------------------------------------------------------------------------------------------|-----------------------------------------|
| 1    | Warning letter issued: tenant formally notified of breach and given opportunity to remedy               | Minimum 14 days to remedy               |
| 2    | Formal Notice to Remedy: legal notice specifying breach, remedy required and notice period              | Minimum 28 days                         |
| 3    | Notice to Quit: legal notice that the tenancy will be terminated on a specified date                    | Minimum 1 calendar month                |
| 4    | Application to Court: if tenant has not vacated, DataCompany applies for a Possession Order             | Filed on or after Notice to Quit expiry |
| 5    | Court Hearing: both parties appear before a magistrate or judge; order may be granted or conditions set | Set by Court                            |
| 6    | Enforcement: if tenant does not comply with Court Order, a Warrant of Possession is obtained            | Post-court order                        |
| 7    | Physical Possession: Court-authorised officer supervises handover of property to DataCompany            | Per Warrant of Possession               |

### 4. Expedited Process (Serious or Urgent Cases)

Where grounds involve violence, immediate risk to persons or property, serious criminal activity or deliberate damage, DataCompany may apply to the Court for an expedited possession order without the full standard notice period. Legal advice is obtained before initiating any expedited process and all decisions are authorised at Head of Housing Operations level or above.

### 5. Unlawful Eviction

DataCompany strictly prohibits the following actions at all stages of any tenancy or eviction process:

- Changing or removing locks to a property without a valid Court Order.
- Removing or withholding a tenant's personal property.
- Cutting off utilities (water, electricity, gas) as a means of forcing a tenant to vacate.
- Physical intimidation, threats or harassment of any tenant or household member.
- Entering a property without legal authority or the tenant's consent.
- Any action designed to make the property uninhabitable to force a departure.

Any member of DataCompany staff found to have engaged in unlawful eviction conduct will be subject to disciplinary action up to and including dismissal, and DataCompany will cooperate fully with any criminal or civil investigation.

### 6. Support Before and During Eviction

DataCompany actively signposts tenants facing eviction to available support services at the earliest opportunity. These include:

- DataCompany's Tenancy Sustainment Team: available to assist tenants in arrears with budgeting advice, payment plan negotiations and referrals to welfare support.
- Harare Social Welfare Services: for emergency housing assistance and social support.
- Zimbabwe Legal Aid Directorate: free or reduced-cost legal advice for qualifying tenants.
- Zimbabwe Housing Tribunal: independent adjudication of tenancy disputes before or during legal proceedings.

Engagement with support services does not suspend or override legal proceedings that DataCompany is required by law to pursue, but DataCompany will take genuine support engagement into account when exercising its discretion.

## 7. Post-Eviction Responsibilities

Following lawful possession of a property, DataCompany will: conduct a full property inspection within 3 working days; secure the property and arrange necessary repairs before re-letting; address any personal belongings left by the former tenant in accordance with applicable law (abandoned goods notice issued, storage for minimum 28 days before lawful disposal); and close the former tenant's account, reconciling the deposit against any outstanding arrears, damages and legal costs. Any outstanding balance is pursued through civil debt recovery procedures.

## 8. Policy Review

This policy is reviewed annually by the Legal and Compliance Manager in conjunction with the Head of Housing Operations. It is updated whenever there is a material change in applicable Zimbabwe tenancy law, court procedure or DataCompany operational practice. For legal queries regarding this policy, contact [legal@datacompany.co.zw](mailto:legal@datacompany.co.zw) or call +263 4 700 100.